



## CHAPTER lxxviii.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Ashton-under-Lyne Darwen Newton in Mackerfield Prestwich and Vaynor and Penderyn. A.D. 1903.  
[21st July 1903.]

**W**HEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875 :

38 & 39 Vict.  
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament and that the provisions herein contained should be enacted with reference to certain of such Orders :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders as altered and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall subject to the provisions of this Act have full validity and force. Orders in schedule confirmed.

2. The authorities mentioned in the Prestwich Order 1903 and the Vaynor and Penderyn Order 1903 hereby confirmed shall not under the powers of those Orders purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied. Restriction of power to take houses of labouring class.

[Ch. lxxviii.]      *Local Government Board's*      [3 EDW. 7.]  
*Provisional Orders Confirmation (No. 10) Act, 1903.*

A.D. 1903.      The expression “labouring class” means mechanics artizans  
— labourers and others working for wages hawkers costermongers  
persons not working for wages but working at some trade or  
handicraft without employing others except members of their own  
family and persons other than domestic servants whose income  
does not exceed an average of thirty shillings a week and the  
families of any of such persons who may be residing with them.

Short title.      **3.** This Act may be cited as the Local Government Board's  
Provisional Orders Confirmation (No. 10) Act 1903.

**S C H E D U L E.**

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A.D. 1903.

**BOROUGH OF ASHTON-UNDER-LYNE.**

*Provisional Order for altering certain Local Acts and a  
Confirming Act.*

*Ashton-under-  
Lyne Order.*

To the Mayor Aldermen and Burgesses of the Borough of Ashton-under-Lyne;—

And to all others whom it may concern.

WHEREAS the Borough of Ashton-under-Lyne (herein-after referred to as “the Borough”) is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as “the Corporation”) are the Urban District Council and as such council are the local authority within the meaning of the Public Health Act 1875;

And whereas the unrepealed provisions of the Ashton-under-Lyne Improvement Act 1849 the Ashton-under-Lyne Improvement Act 1877 the Ashton-under-Lyne Improvement Act 1886 and the Ashton-under-Lyne Corporation Act 1893 (each of which Acts is herein-after referred to separately as the Act of the year in which it was passed and all of which Acts are herein-after together referred to as “the Local Acts”) as altered by certain Local Acts and by the Provisional Order herein-after mentioned and by certain other Provisional Orders confirmed by Parliament but which do not affect the subject-matter of this Order are in force in the Borough;

12 & 13 Vict.  
c. xxxv.  
40 & 41 Vict.  
c. clxxi.  
49 & 50 Vict.  
c. lxxviii.  
56 & 57 Vict.  
c. cxcv.

And whereas by Section 66 of the Act of 1886 the Corporation were empowered in respect of new street expenses or any other expenses by that Act or by the Acts of 1849 or 1877 made payable by or recoverable from the owner or occupier of any buildings or lands to allow to the owners or occupiers or any of them time (not exceeding twelve years) for the payment thereof or any part thereof;

And whereas by Section 67 of the Act of 1886 the expression “private improvement expenses” was defined;

And whereas by Section 20 of the Act of 1893 as altered by the Ashton-under-Lyne Order 1900 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 13) Act 1900 (which Order and Act are herein-after respectively referred to as “the Order” and “the Confirming Act”) the Corporation were empowered where any closet accommodation as

63 & 64 Vict.  
c. clxxxii.

[Ch. lxxviii.]      *Local Government Board's*      [3 EDW. 7.]  
*Provisional Orders Confirmation (No. 10) Act, 1903.*

A.D. 1903. defined by the Act of 1893 which existed at the passing of that Act was  
*Ashton-under-Lyne Order.* certified to be insufficient or to be in such a state as to be a nuisance or injurious  
to health to require the owner of the premises by the conversion of such closet  
accommodation or otherwise to provide on or in connexion with the premises  
sufficient and proper closet accommodation and on the neglect or refusal of  
the owner the Corporation were themselves empowered to execute the  
requisite works and the Corporation were empowered to recover summarily  
as a civil debt from the owner of the premises so much of the expenses  
incurred by the Corporation as might be in excess of the sum of four pounds ;

And whereas it is expedient that the Local Acts and the Confirming Act  
should be altered in manner herein-after appearing :

38 & 39 Vict.  
c. 55. Now therefore We the Local Government Board in pursuance of the  
powers given to Us by Sections 297 and 303 of the Public Health Act 1875  
and by any other Statutes in that behalf do hereby order that from and  
after the date of the Act of Parliament confirming this Order the Local Acts  
and the Confirming Act so far as it relates to the Order shall be altered so  
that the following provisions shall take effect :—

Alterations of  
Act of 1886. Art. I.—(1) Section 66 of the Act of 1886 shall have effect as if the  
words “or by any other enactment for the time being in force in the borough”  
were inserted immediately after the words and figures “Acts of 1849 or 1877.”

(2) Section 67 of the Act of 1886 shall have effect as if the words “and  
all other expenses at any time incurred by the Corporation” were inserted  
immediately after the words “so called” and as if the words “for the time  
being in force in the borough” were inserted immediately after the word  
“enactment.”

Admission to  
premises for  
purposes of  
Act of 1893  
and Order. Art. II. For the purposes of Section 20 of the Act of 1893 as altered by  
the Order and this Order any person duly authorised in writing by the  
Corporation shall on production of such authority be admitted into any  
premises and if admission for any such purpose is refused an order of a  
justice for the admission of such person may be obtained in manner provided  
by Section 102 of the Public Health Act 1875 and the provisions of Sections 102  
and 103 of that Act as to an order of a justice shall with the necessary  
modifications apply as if the said purposes were purposes of the said  
Section 102.

Payment for  
works of com-  
mon benefit. Art. III. Where under the provisions of Section 20 of the Act of 1893 as  
altered by the Order the Corporation do any work for the common benefit of  
two or more buildings belonging to different owners the expenses which  
under that section as altered by the Order are recoverable by the Corpora-  
tion from the owners shall be paid by the owners of such buildings in such  
proportions as shall be determined by the surveyor or in case of dispute by a  
Petty Sessional Court.

Purposes of Ash-  
ton-under-Lyne  
Order 1900 to  
be purposes of  
Act of 1893 as to  
power to borrow  
money. Art. IV. The purposes of the Order shall be deemed to be purposes of  
the Act of 1893 for which the Corporation may borrow under the provisions  
of Section 39 of that Act the sum of thirty-five thousand pounds or with the

[3 EDW. 7.]                      *Local Government Board's*                      [Ch. lxxviii.]  
*Provisional Orders Confirmation (No. 10) Act, 1903.*

approval of the Local Government Board such further moneys as the Corporation may require.

A.D. 1903.

*Ashton-under-Lyne Order.*

Art. V. Nothing in this Order affects prejudicially any right power privilege or exemption of the Crown.

Art. VI. This Order may be cited as the Ashton-under-Lyne Order 1903.

Short title.

Given under the Seal of Office of the Local Government Board this  
Eighth day of May One thousand nine hundred and three.

(L.S.)

WALTER H. LONG President.

S. B. PROVIS Secretary.

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BOROUGH OF DARWEN.

*Provisional Order for partially repealing and altering the  
Darwen Corporation Act 1899.*

*Darwen Order.*

To the Mayor Aldermen and Burgesses of the Borough of  
Darwen ;—

To the Rural District Council of Blackburn ;—

And to all others whom it may concern.

WHEREAS the Borough of Darwen (herein-after referred to as “the Borough”) is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as “the Corporation”) are the Urban District Council and as such council are the local authority within the meaning of the Public Health Act 1875 and the Darwen Corporation Act 1899 (herein-after referred to as “the Local Act”) is in force in the Borough ;

62 & 63 Vict.  
c. ccxxiv.

And whereas by Section 65 of the Local Act for the purpose of preventing contamination of the water supply of the Corporation from the sewage of Tockholes in the Rural District of Blackburn and from the sewage works belonging to the Rural District Council of Blackburn (in the said section and hereafter in this Order referred to as “the Rural Council”) and used for the drainage of part of the Parish of Tockholes it was enacted as follows :—

- “ (1) Within six months after the passing of this Act the Corporation  
“ shall acquire the lands numbered on the deposited plans of the lands  
“ intended to be taken for the protection of waterworks 25A in the  
“ Parish of Tockholes and they shall provide on some part of such  
“ lands below the Earnsdale Reservoir of the Corporation and convey  
“ to the Rural Council free of cost a site of half an acre in extent for  
“ the purpose of the construction thereon of the works in this section  
“ mentioned and intended to be executed by the Rural Council If a  
“ larger area of land than half an acre shall be necessary to meet the  
“ requirements of the Local Government Board then the Rural Council  
“ shall purchase from the Corporation all land in excess of half an acre

[Ch. lxxviii.]      *Local Government Board's*      [3 EDW. 7.]  
*Provisional Orders Confirmation (No. 10) Act, 1903.*

A.D. 1903.  
—  
*Darwen Order.*

- “ necessary to meet such requirements at the same price per acre as  
“ that paid by the Corporation for the said lands numbered 25A on  
“ the deposited plans :
- “ (2) The Rural Council shall on the conveyance to them of the said site  
“ proceed to construct and complete suitable outfall works for dealing  
“ with the sewage of such part of the said Parish of Tockholes as  
“ aforesaid and shall cause such works to be properly enclosed with a  
“ suitable fence to the reasonable satisfaction of the Corporation  
“ and all such works shall at all times be efficiently maintained and  
“ kept by the Rural Council :
- “ (3) The Corporation shall construct a water-tight sewer to convey the  
“ sewage from the tank or cesspool near Ryall’s farm buildings shown  
“ on the deposited plans and situated near the southernmost corner of  
“ the enclosure numbered 32 on those plans to the outfall works to be  
“ constructed by the Rural Council on the before-mentioned site and  
“ the Corporation shall for ever thereafter efficiently maintain such  
“ sewer at their own expense :
- “ (4) The Corporation on the completion of the works to be carried out  
“ by the Rural Council as before described under this section shall pay  
“ to the Rural Council a sum equal to one-third part of the cost of the  
“ construction of those works as vouched and certified by the engineer  
“ of the Rural Council whose certificate shall be final and conclusive  
“ and the amount thereof may be recovered as a debt in the High  
“ Court of Justice :
- “ (5) Any expenses incurred by the Rural Council under this section or  
“ arising out of any proceedings thereunder including the costs  
“ charges and expenses of opposing the Bill for this Act shall be  
“ deemed to be special expenses incurred by them under the provisions  
“ of the Public Health Acts and shall be charged to the Parish of  
“ Tockholes :
- “ (6) The Corporation shall at their own expense and without delay  
“ construct and complete and for ever thereafter maintain a water-  
“ tight sewer to convey to the before-named outfall works the sewage  
“ from the cottages and cesspools upon their estate at the places  
“ called Fine Peters and Pleasant View in Tockholes aforesaid as  
“ shown upon the said deposited plans so as to prevent any contamina-  
“ tion to the water supply as well of the Corporation as the water  
“ supply of the Liverpool Corporation :
- “ (7) Any difference arising between the Corporation and the Rural  
“ Council under this section shall be determined by arbitration in  
“ manner provided by the Public Health Acts ”;

And whereas the Corporation have acquired the lands described in  
sub-section (1) of the said Section 65 and delineated and coloured blue and

[3 Edw. 7.]                      *Local Government Board's*                      [Ch. lxxviii.]  
*Provisional Orders Confirmation (No. 10) Act, 1903.*

pink on the plan (herein-after referred to as "the plan") marked "Plan mentioned in the Darwen Order 1903" and sealed with the official seal of the Local Government Board and deposited in their office and have conveyed to the Rural Council a portion (coloured pink on the plan) of those lands containing half an acre or thereabouts for the purpose mentioned in the said sub-section ;

A.D. 1903.  
 ———  
*Darwen Order.*

And whereas the Corporation have constructed the sewers required to be constructed by sub-sections (3) and (6) of the said section and the course of the said sewers (herein-after referred to as "the sewers A B C") is shown on the plan between the terminal points thereon marked A B and C by the descriptive words and figures "sewer constructed under Act of 1899" and the accompanying lines ;

And whereas the Corporation have constructed another sewer for the drainage of their Higher and Lower Wenshead Farms and the course of the said sewer (herein-after referred to as "the sewer D E") is shown on the plan by a line between the terminal points thereon marked D and E ;

And whereas the Rural Council have not constructed the outfall works mentioned in sub-section (2) of Section 65 of the Local Act and the Corporation and the Rural Council have agreed that the scheme contemplated by Section 65 of the Local Act shall be modified ;

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be partially repealed and altered so that the following provisions shall take effect viz.,—

38 & 39 Vict.  
 c. 55.

Art. I.—(1) The Corporation shall under and in pursuance of the powers of the Public Health Act 1875 construct a sewer from the end of their existing sewer at Catterall Street Darwen to form a junction with and to receive the sewage from the sewer D E.

Works for  
 disposal of  
 sewage from  
 Tockholes.

(2) Such of the provisions of the Local Act as empower the Corporation for the protection of their waters and waterworks to construct and lay down sewers shall apply and have effect so as to enable the Corporation to construct and lay down a sewer extending from the termination of the sewers A B C through the outer slope of the embankment of their Earnsdale Reservoir to a junction with the sewer to be constructed by the Corporation in accordance with subdivision (1) of this Article.

(3) The Corporation shall when the sewers described in subdivisions (1) and (2) of this Article have been constructed and completed for ever after maintain those sewers and the sewers A B C and receive and dispose of the sewage passing through the said sewers as forming part of the sewerage system of the Borough.

[Ch. lxxviii.]      *Local Government Board's*      [3 EDW. 7.]  
*Provisional Orders Confirmation (No. 10) Act, 1903.*

A.D. 1903.      (4) The cost of the construction and maintenance of the sewer mentioned  
Darwen Order. in subdivision (2) of this Article except so far as it is met by the payments  
Cost of works. to be made by the Rural Council in pursuance of Article II. of this Order and  
the cost of the maintenance of the sewers A B C shall be defrayed as if the  
same had been incurred for waterworks purposes under the authority of  
the Local Act and the Local Act including the provisions of Part XII. and  
of any enactment incorporated with or applied by the Local Act shall apply  
and have effect accordingly.

Reconveyance      Art. II.—(1) The Rural Council shall in consideration of the sum of  
of land to      twenty-five pounds reconvey to the Corporation the land coloured pink on  
Corporation.      the plan to be held by the Corporation upon the same terms and conditions  
as were applicable thereto when acquired by the Corporation as aforesaid  
under the Local Act for the protection of their waterworks.

Application of      (2) The Rural Council shall apply the said sum of twenty-five pounds  
proceeds.      when received in defraying any expenditure for which they are liable under  
this Order.

Contribution of      (3) The Rural Council shall pay to the Corporation the sum of seven  
Rural Council      hundred pounds by such instalments and at such dates as have been agreed  
to cost of      upon together with interest at the rate of three pounds ten shillings per  
works.      centum per annum on so much of the said sum of seven hundred pounds as  
from time to time remains unpaid calculated from the expiration of one  
calendar month from the date of the Act of Parliament confirming this  
Order.

Costs of Order.      Art. III.—(1) The costs incurred by the Corporation and the Rural  
Expenses &c.      Council in connexion with this Order shall be paid as to one-half by the  
of Rural      Corporation and as to one-half by the Rural Council and subject to the  
Council to be      provisions of this Order the expenditure incurred and payable by the Rural  
special and      Council under this Order shall be deemed to be special expenses within the  
charged to      meaning of the Public Health Act 1875 chargeable upon the contributory  
Tockholes.      place of Tockholes.

Costs of      (2) Where the Local Government Board cause any local inquiry to  
inquiries.      be held with reference to any of the purposes of this Order the costs  
incurred by the Board in relation to that inquiry (including such reasonable  
sum not exceeding three guineas a day as the Board may determine  
for the services of any inspector or officer of the Board engaged in the  
inquiry) shall be paid by the Corporation or by the Rural Council or by  
the Corporation and the Rural Council in such proportions as the Board  
may in each case direct and the Board may certify the amount of the costs  
so incurred and any sum so certified and directed by the Board to be paid by  
the Corporation or the Rural Council shall be a debt due to the Crown from  
the Corporation or the Rural Council.

Deposit of      Art. IV. A copy of the plan sealed with the official seal of the Local  
copies of plan.      Government Board shall be deposited in the office of the Town Clerk of the

Borough and another copy sealed in like manner shall be deposited in the office of the clerk to the Rural Council within fourteen days after the date of this Order.

Art. V. When the Corporation have constructed and completed the sewers mentioned in this Order the provisions of sub-sections (2) (3) (4) (6) and (7) of Section 65 of the Local Act except so far as the same may have been acted upon shall be repealed as from such date as the Local Government Board by order determine.

Art. VI. In case of difference respecting any matter arising out of the provisions of this Order the difference shall be referred to and be settled by arbitration in the manner provided by the Public Health Act 1875 and the provisions of that Act shall with the necessary modifications apply as if the Corporation or the Rural Council were a party within the meaning of those provisions.

Art. VII. This Order may be cited as the Darwen Order 1903. Short title.

Given under the Seal of Office of the Local Government Board this  
Sixth day of May One thousand nine hundred and three.

(L.S.)

WALTER H. LONG President.

S. B. PROVIS Secretary.

URBAN DISTRICT OF NEWTON IN MACKERFIELD.

*Provisional Order for altering the Newton District Improvement Act 1855 and certain Confirming Acts.*

*Newton in  
Mackerfield  
Order.*

To the Urban District Council of Newton in Mackerfield ;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Newton in Mackerfield (herein-after referred to as “ the Council ”) are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Newton in Mackerfield (herein-after referred to as “ the District ”);

And whereas there are in force in the District the unrepealed provisions of the Newton District Improvement Act 1855 (herein-after referred to as "the Local Act") as altered by a Provisional Order of the Local Government Board dated the Twenty-fourth day of May One thousand eight hundred and eighty-nine which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 11) Act 1889 by a Provisional Order of the Local Government Board dated the Twenty-second day of April One thousand eight hundred and ninety-three which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 9) Act 1893 by the

18 & 19 Vict.  
c. c.

52 & 53 Vict.  
c. cxiii.

56 & 57 Vict.  
c. cxvii.

*Newton in  
Mackerfield  
Order.*

63 & 64 Vict.  
c. liii.

1 Edw. 7. c. xli.

Newton in Mackerfield Order 1900 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1900 by the Newton in Mackerfield Order 1901 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1901 (all which Provisional Orders and Confirmation Acts are herein-after referred to respectively as "the Orders" and "the Confirming Acts" and each of which Provisional Orders is herein-after referred to as the Order of the year in which it was made) and by certain other Provisional Orders which were duly confirmed by Parliament but which do not affect the subject-matter of this Order ;

And whereas in pursuance of Section 40 of the Local Act the Council have power to make assess and levy a general improvement rate for the purposes therein mentioned not exceeding in any one year two shillings in the pound of the full net annual value of the property included in that rate ;

And whereas in pursuance of Section 46 of the Local Act the Council have power subject as therein provided to make assess and levy a highway rate to be applied for the purposes therein mentioned not exceeding in any one year the sum of two shillings and sixpence in the pound on the full net annual value of the property included in that rate ;

And whereas by Section 53 of the Local Act the Order of 1889 and the Order of 1893 the Council or their predecessors were empowered to borrow money on the security of the general improvement rate and on the security of the highway rate ;

And whereas by Article I. of the Order of 1900 the Council were empowered with the sanction of the Local Government Board to borrow for the purposes of their gas undertaking and on the security of the revenue arising from that undertaking and of the gas rates under the Local Act or upon either of such securities any sum or sums not exceeding in the whole the sum of twenty thousand pounds in addition to the sum of twenty-four thousand pounds therein referred to ;

And whereas by Article I. of the Order of 1901 the Council were empowered with the sanction of the Local Government Board to borrow for the purposes of their water undertaking and on the security of the revenue of that undertaking and of the district fund and general district rate or upon either of such securities any sum or sums not exceeding in the whole the sum of twenty-five thousand pounds in addition to the sum of six thousand pounds therein referred to :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order (herein-after referred to as "the commencement of this Order") the Local Act and the Confirming

38 & 39 Vict.  
c. 55.

[3 EDW. 7.]                      *Local Government Board's*                      [Ch. lxxviii.]  
*Provisional Orders Confirmation (No. 10) Act, 1903.*

A.D. 1903.

Acts so far as such last-mentioned Acts respectively relate to the Orders shall be altered so as to provide as follows viz.,—

*Newton in  
Mackerfield  
Order.*

Art. I. Article I. of the Order of 1900 shall have and be deemed to have had effect as if the words “and the general improvement rate” had been inserted therein after the words “gas rates”.

Security for  
moneys to be  
borrowed under  
Order of 1900.

Art. II. Article I. of the Order of 1901 shall have and be deemed to have had effect as if the words “general improvement rate under the Local Act” had been inserted therein instead of the words “district fund and general district rate”:

Security for  
moneys bor-  
rowed and to  
be borrowed  
under Order of  
1901.

Provided that any mortgage or other security given by the Council before the commencement of this Order for securing the repayment of moneys borrowed under the Order of 1901 shall be construed and shall have effect as if the general improvement rate were referred to therein instead of the district fund and general district rate and the sums secured thereby shall except so far as the same shall be paid and satisfied out of the revenue of the water undertaking of the Council be paid and satisfied out of the general improvement rate.

Art. III. The limit imposed by the Local Act on or in respect of the general improvement rate or the highway rate shall not apply or have effect where those rates or either of them are or is levied for defraying the expenses incurred in the execution of the Public Health Acts and the limit imposed by the Local Act on or in respect of the general improvement rate shall not apply or have effect where any expenses incurred under any other Public General Act are required or authorised to be defrayed out of the general improvement rate as the local rate for any purposes of that Act or as the rate out of which expenses incurred in the execution of the Public Health Acts are defrayed.

Limit imposed  
by Local Act  
on general im-  
provement rate  
and highway  
rate not to  
apply when  
levied for pur-  
poses of Public  
Health Acts  
and certain  
other Acts.

Art. IV. No limit imposed by the Local Act or by the Orders as hereby altered on or in respect of the amounts which may be borrowed upon the security of the general improvement rate or of the highway rate shall apply or have effect so as to restrict the borrowing of money on the security of those rates or either of them under and for the purposes of the Public Health Acts nor in the case of the general improvement rate so as to restrict the borrowing of money upon the security of that rate where any other Public General Act confers a borrowing power upon the security of the general improvement rate as the local rate for any purposes of that Act or as the rate out of which expenses incurred in the execution of the Public Health Acts are defrayed.

Limit imposed  
by Local Act  
and Orders on  
amounts which  
may be bor-  
rowed upon  
security of  
general im-  
provement  
rate and high-  
way rate not to  
apply in  
certain cases.

Art. V. Sections 49 and 52 of the Local Act shall have effect as if to the paragraph commencing thirdly in each of those sections there were added the following words namely,—

Application of  
general im-  
provement rate  
and highway  
rate.

“ or in otherwise providing in accordance with the requirements  
“ applicable thereto the requisite instalments or sinking funds for the  
“ repayment of moneys so borrowed or secured ”.

*Newton in  
Mackerfield  
Order.*

*Provisional Orders Confirmation (No. 10) Act, 1903.*

Short title.

Art. VI. This Order may be cited as the Newton in Mackerfield Order 1903.

Given under the Seal of Office of the Local Government Board this  
Eighth day of May One thousand nine hundred and three.

(L.S.)

WALTER H. LONG President.

S. B. PROVIS Secretary.

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URBAN DISTRICT OF PRESTWICH.

*Prestwich  
Order.*

*Provisional Order to enable the Urban District Council of Prestwich  
to put in force the Compulsory Clauses of the Lands Clauses  
Acts.*

To the Urban District Council of Prestwich ; --

And to all others whom it may concern.

WHEREAS the Urban District Council of Prestwich (herein-after referred to as "the Council") require to purchase and take the lands described in the schedule hereto for the purpose of widening opening enlarging or otherwise improving the street called Bury Old Road in their district :

38 & 39 Vict.  
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz.,—

Art. I. The Council shall be empowered to put in force with reference to the lands described in the schedule hereto subject to the continuance of existing public rights of highway (if any) and for the purpose aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Art. II. This Order may be cited as the Prestwich Order 1903.

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[3 EDW. 7.]      *Local Government Board's*      [Ch. lxxviii.]  
*Provisional Orders Confirmation (No. 10) Act, 1903.*

The SCHEDULE above referred to.

A.D. 1903.

*Prestwich  
Order.*

Township of PRESTWICH in the County of LANCASTER.

| Nos. on deposited Plans. | Description of Lands.          | Owners or reputed Owners.                                   | Lessees or reputed Lessees. | Occupiers.                               |
|--------------------------|--------------------------------|-------------------------------------------------------------|-----------------------------|------------------------------------------|
| 4                        | Road and public foot-path.     | The Earl of Wilton and Sir Frederic William Johnstone Bart. | - - -                       | Walter Egerton Walker.                   |
| 5                        | Shrubbery - -                  | Ditto - - -                                                 | - - -                       | Ditto.                                   |
| 6                        | Garden - -                     | Ditto - - -                                                 | - - -                       | George Barker.                           |
| 30                       | Ditto - -                      | Elizabeth Bentley - -                                       | - - -                       | John Thomas Schofield.                   |
| 31                       | Ditto - -                      | Ditto - - -                                                 | - - -                       | Elizabeth Bentley Albert Edward Bentley. |
| 32                       | Playgrounds and garden.        | The Trustees of St. Margaret's Schools.                     | - - -                       | The Managers of St. Margaret's Schools.  |
| 33                       | Entrance and garden            | The Manchester Corporation.                                 | - - -                       | St. Margaret's Reading Room Committee    |
| 34                       | Garden - -                     | Ditto - - -                                                 | - - -                       | William Fawthrop.                        |
| 35                       | Land - -                       | Ditto - - -                                                 | - - -                       | William Fawthrop.                        |
| 36                       | Shrubbery - -                  | Frederick Cawley - -                                        | - - -                       | The Manchester Corporation.              |
| 37                       | Ditto - -                      | Ditto - - -                                                 | - - -                       | Frederick Cawley.                        |
| 38                       | Field - -                      | Ditto - - -                                                 | - - -                       | Ditto.                                   |
| 39                       | Entrance - -                   | Ditto - - -                                                 | - - -                       | Ditto.                                   |
| 40                       | Shrubbery - -                  | George William Rayner Wood.                                 | - - -                       | Ditto.                                   |
| 41                       | Cartway - -                    | Ditto - - -                                                 | - - -                       | George William Rayner Wood.              |
| 42                       | Shrubbery and carriage drive.  | Ditto - - -                                                 | - - -                       | Ditto.                                   |
| 43                       | Entrance - -                   | Ditto - - -                                                 | - - -                       | George Edward Cowell.                    |
| 44                       | Yard and offices -             | Ditto - - -                                                 | - - -                       | Ditto.                                   |
| 45                       | House - -                      | Ditto - - -                                                 | - - -                       | Joseph Green.                            |
| 46                       | Ditto - -                      | Ditto - - -                                                 | - - -                       | Ditto.                                   |
| 47                       | Yard and offices -             | Ditto - - -                                                 | - - -                       | Thomas James.                            |
| 48                       | Garden - -                     | Ditto - - -                                                 | - - -                       | Ditto.                                   |
| 49                       | House stables and coach-house. | Ditto - - -                                                 | - - -                       | George Edward Cowell.                    |
| 50                       | Entrance - -                   | Ditto - - -                                                 | - - -                       | Ditto.                                   |
| 51                       | Shrubbery - -                  | Ditto - - -                                                 | - - -                       | Ditto.                                   |
| 52                       | Land - -                       | Ditto - - -                                                 | - - -                       | Ditto.                                   |
| 53                       | Shrubbery - -                  | Ditto - - -                                                 | - - -                       | George William Rayner Wood.              |
|                          |                                |                                                             |                             | Ditto.                                   |

[Ch. lxxviii.]      *Local Government Board's*      [3 EDW. 7.]  
*Provisional Orders Confirmation (No. 10) Act, 1903.*

A.D. 1903.  
—  
*Prestwich*  
*Order.*

| Nos. on deposited Plans. | Description of Lands.   | Owners or reputed Owners.                                                                         | Lessees or reputed Lessees. | Occupiers.                  |
|--------------------------|-------------------------|---------------------------------------------------------------------------------------------------|-----------------------------|-----------------------------|
| 54                       | Garden - -              | Ferdinand Baume - -                                                                               | - -                         | Ferdinand Baume.            |
| 55                       | Entrance - -            | Ditto - -                                                                                         | - -                         | Ditto.                      |
| 56                       | Garden - -              | Ditto - -                                                                                         | - -                         | Ditto.                      |
| 57                       | Yard - -                | Ditto - -                                                                                         | - -                         | Ditto.                      |
| 58                       | Stable - -              | Ditto - -                                                                                         | - -                         | Ditto.                      |
| 59                       | Back entrance - -       | Samuel Warburton - -                                                                              | - -                         | Samuel Warburton.           |
| 60                       | Garden - -              | Ditto - -                                                                                         | - -                         | Ditto.                      |
| 61                       | Entrance - -            | Ditto - -                                                                                         | - -                         | Ditto.                      |
| 62                       | Garden - -              | Ditto - -                                                                                         | - -                         | Ditto.                      |
| 63                       | Entrance - -            | George William Rayner Wood.                                                                       | - -                         | George William Rayner Wood. |
| 64                       | Field - -               | Ditto - -                                                                                         | - -                         | Ditto.                      |
| 65                       | Shrubbery - -           | Ditto - -                                                                                         | - -                         | Ditto.                      |
| 66                       | Garden - -              | Robert Barclay - -                                                                                | - -                         | William Edward Worthington. |
| 67                       | Entrance - -            | Ditto - -                                                                                         | - -                         | Robert Barclay.             |
| 68                       | Field - -               | Henry Lee - -                                                                                     | - -                         | Henry Lee.                  |
| 69                       | Garden - -              | The Executors of the Will of Benjamin Heape deceased viz. Walter Heape Frank Heape Herbert Heape. | - -                         | Anthony Alexander Vlasto.   |
| 70                       | Entrance - -            | Ditto - -                                                                                         | - -                         | Ditto.                      |
| 71                       | Field - -               | Richard Hoyle - -                                                                                 | - -                         | Richard Hoyle.              |
| 72                       | Entrance - -            | Ditto - -                                                                                         | - -                         | Ditto.                      |
| 73                       | Field and shrubbery     | Ditto - -                                                                                         | - -                         | Ditto.                      |
| 74                       | Ditto - -               | Ditto - -                                                                                         | - -                         | Ditto.                      |
| 75                       | Shrubbery - -           | Edward Holt - -                                                                                   | - -                         | James Whitehead.            |
| 76                       | Garden - -              | The Earl of Wilton and Sir Frederic William Johnstone Bart.                                       | - -                         | Charles George Rickards.    |
| 77                       | Ditto - -               | Ditto - -                                                                                         | - -                         | Ditto.                      |
| 78                       | Garden and cellar area. | James Whitehead - -                                                                               | - -                         | John Whitehead.             |
| 79                       | Garden - -              | Ditto - -                                                                                         | - -                         | George William Milling.     |
| 80                       | Ditto - -               | Ditto - -                                                                                         | - -                         | Walter Alfred Johnson.      |
| 81                       | Shop and cellar         | Edmund Buckle jun. - -                                                                            | - -                         | William Alexander Bennett.  |
| 82                       | Garden and cellar       | Ditto - -                                                                                         | - -                         | Ditto.                      |
| 83                       | Garden - -              | The Earl of Wilton and Sir Frederic William Johnstone Bart.                                       | - -                         | Francis Hardy.              |

*Provisional Orders Confirmation (No. 10) Act, 1903.*

| Nos. on deposited Plans. | Description of Lands. | Owners or reputed Owners.                                   | Lessees or reputed Lessees.                                                  | Occupiers.             |
|--------------------------|-----------------------|-------------------------------------------------------------|------------------------------------------------------------------------------|------------------------|
| 84                       | Garden and waste      | The Earl of Wilton and Sir Frederic William Johnstone Bart. | - - -                                                                        | Stanley Pilkington.    |
| 85                       | House - - -           | Ditto - - -                                                 | - - -                                                                        | Ditto.                 |
| 100                      | Field - - -           | Sir George Dashwood Bart.                                   | - - -                                                                        | Edmund Wightman Airey. |
| 101                      | Gardens - - -         | The Rector of Prestwich.                                    | The Executor of the Will of Benjamin Hinchliffe deceased viz. Emma Bramhall. | Herbert Henry Greaves. |
| 102                      | Ditto - - -           | Ditto - - -                                                 | Ditto - - -                                                                  | Robert Smith.          |
| 103                      | Ditto - - -           | Ditto - - -                                                 | Ditto - - -                                                                  | John Bennett.          |
| 104                      | Ditto - - -           | Ditto - - -                                                 | Ditto - - -                                                                  | James William Broadey. |
| 105                      | Ditto - - -           | Ditto - - -                                                 | Ditto - - -                                                                  | George Hulme.          |
| 106                      | Garden - - -          | Ditto - - -                                                 | Harriet Gregory -                                                            | Susannah Salmon.       |
| 107                      | House - - -           | Ditto - - -                                                 | Ditto - - -                                                                  | Ditto.                 |
| 108                      | Ditto - - -           | Ditto - - -                                                 | Ditto - - -                                                                  | Alfred Eckersley.      |
| 109                      | Yard - - -            | Ditto - - -                                                 | Ditto - - -                                                                  | Ditto.                 |
| 110                      | Orchard - - -         | William Davenport -                                         | - - -                                                                        | William Davenport.     |
| 111                      | Garden - - -          | The Rector of Prestwich.                                    | Eli Whitehouse -                                                             | Arthur Henry Burgess.  |

A.D. 1903.

*Prestwich*  
*Order.*

Given under the Seal of Office of the Local Government Board this  
Eighth day of May One thousand nine hundred and three.  
(L.S.) WALTER H. LONG President.

WALTER H. LONG President.

S. B. PROVIS Secretary.

## RURAL DISTRICT OF VAYNOR AND PENDERYN.

*Provisional Order to enable the Rural District Council of Vaynor and Penderyn to put in force the Compulsory Clauses of the Lands Clauses Acts.*

*Vaynor and  
Penderyn  
Rural Order.*

To the Rural District Council of Vaynor and Penderyn;—

And to all others whom it may concern.

WHEREAS the Rural District Council of Vaynor and Penderyn (herein-after referred to as "the Council") require to purchase and take the lands described

[Ch. lxxviii.]      *Local Government Board's*      [3 EDW. 7.]  
*Provisional Orders Confirmation (No. 10) Act, 1903.*

A.D. 1903.      in the schedule hereto for the disposal of the sewage of the contributory place of Vaenor in their district and for providing access to such lands :

*Vaynor and  
Penderyn  
Rural Order.*

38 & 39 Vict.  
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall have effect viz.,—

Art. I. The Council shall be empowered to put in force with reference to the lands described in the schedule hereto subject to the continuance of existing public rights of highway (if any) and for the purposes aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Art. II. This Order may be cited as the Vaynor and Penderyn Order 1903.

The SCHEDULE above referred to.

Parish of VAENOR in the County of BRECKNOCK.

| Nos. and<br>Colour on<br>deposited<br>Plans. | Description of<br>Lands. | Owners or reputed<br>Owners.            | Occupier.        |
|----------------------------------------------|--------------------------|-----------------------------------------|------------------|
| 1<br>2<br>3<br>(Pink.)                       | Pasture land             | Crawshay Brothers Cyfarthfa<br>Limited. | Margaret Simons. |

Given under the Seal of Office of the Local Government Board this  
Sixth day of May One thousand nine hundred and three.  
(L.S.)      WALTER H. LONG President.  
S. B. PROVIS Secretary.

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